condition of backwardness. In this way, community-based reservations beyond those granted to Scheduled Castes and Tribes was secured.

Thirdly, the amendment further circumscribed the right to property and vastly expanded the protection provided to zamindari abolition by adding that no land reform law shall be deemed void on the ground that it abridges any of the rights conferred by the Constitution. And finally, to exclude any prospect of judicial scrutiny altogether, it created a special schedule, the infamous Ninth Schedule, as a vault where laws could be placed to make them immune from legal challenge even if they violated Fundamental Rights. By doing so, Nehru sought to foreclose the possibility of judicial review altogether when it came to legislation connected to land reform or nationalization.[31]

In a nutshell, the amendment subordinated Fundamental Rights to government policy, sought to emasculate the courts and provided the constitutional foundation for state repression of civil liberties and press freedom. Indian democracy, described by Ambedkar as ‘top dressing on undemocratic soil’ even at the moment of its birth, has never been the same again. Its first-order effects were apparent even at the time: the revalidation of sedition, the post-colonial government’s reclamation of the coercive powers its colonial predecessor had once had, the decimation of property rights, community-based reservations, and a constitutional mechanism to pass unconstitutional laws. In the longer term, however, as the constitutional historian Granville Austin noted, the amendment was ‘consequential far beyond its immediately visible content’.[32]

Foremost among these consequences was the creation of the precedent of retrospectively amending the Constitution to overturn adverse judicial pronouncements and render constitutional those actions that at the time of their commission had been patently unconstitutional. Within months of its enactment, the Constitution became subject to the vagaries of electoral swings. When a constitution ceased to represent the people or came in the way of the spirit of the age, Nehru argued to his chief ministers, then it was time for it to change.[33] These arguments legitimized a view that the Constitution, ‘rather than being the foundation of the nation’s social